

24CMCV01843 24CMCV01843

County: los-angeles
Division: Civil Law and Motion
Department: E
Hearing date: 2026-06-29
Motion: MOTION FOR ATTORNEY’S FEES DATE: June 29, 2026 TIME: 8:30 A.M.
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Case Number: 24CMCV01843 Hearing Date: June 29, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL
DISTRICT

ROGUE
CREDIT UNION,

Plaintiff,

vs.

FLOYD WILLIS, and DOES 1
through 5, inclusive,

Defendants.

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CASE NO: 24CMCV01843

[TENTATIVE] ORDER RE: MOTION FOR ATTORNEY'S
FEES

DATE: June 29, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Floyd
Douglas Willis

Responding Party: Plaintiff
Rogue Credit Union

Notice: Ok

Tentative Ruling: Defendant's
Motion for Attorney's Fees is GRANTED in a reduced amount.

I.

BACKGROUND

This is an
action for breach of a loan agreement. Plaintiff Rogue Credit Union alleges
that Defendant Floyd Willis executed a loan agreement and promissory note in

the principal amount of Forty Thousand Dollars (\$40,000.00) through non-party Upgrade, Inc. Plaintiff alleges that Defendant's loan was sold and assigned to Plaintiff and Defendant defaulted under the terms of the agreement.

On November 21, 2024, Plaintiff filed the operative Complaint against Floyd Willis and Does 1 through 5, inclusive, alleging a single cause of action for Breach of Written Contract.

On June 13, 2025, Plaintiff filed a Proof of Personal Service, indicating that Plaintiff served Floyd Willis by personal service on June 7, 2025.

On July 21, 2025, Plaintiff filed a Request for Entry of Default as to Floyd Willis. The same day, Floyd Willis' default was entered.

On July 22, 2025, a Court judgment in the amount of \$39,097.92 was entered against Floyd Willis. (See Judgment, 7/22/25.) And an Abstract of Judgment was issued on August 21, 2025.

On December 4, 2025, Movant Floyd Douglas Willis ("Willis")[1] filed a Motion to Set Aside the Clerk's Entry of Default and the Court's Entry of Default Judgment.

On January 6, 2026, the Court granted Willis' Motion to Set Aside Default and Default Judgment in part but denied Willis' request for attorney's fees without prejudice. (See Minute Order, 1/6/26.)

On February 6, 2026, Willis filed the instant Motion for Attorney's Fees and Costs.

On March 12, 2026, Plaintiff filed a Request for Dismissal of the entire action, without prejudice. (See Request for Dismissal, 3/12/26.)

On May 21, 2026, Plaintiff filed its Opposition.

On June 23, 2026, Willis filed his Reply.

II.

ANALYSIS

A.

Legal Standard

1.

Code of Civil Procedure § 473(d)

Code of Civil Procedure § 473(d)

permits the Court, “upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc. § 473(d).)

2.

Code of Civil Procedure §§ 1032 and 1033.5

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc. § 1032(b).) And a “prevailing party” is defined to include “the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant.” (Id., § 1032(a)(4).)

Costs recoverable under Code of

Civil Procedure § 1032 are restricted to those that are both reasonable in amount and reasonably necessary to the conduct of litigation. (Code Civ. Proc. §§ 1033.5(c)(2), (3).) And a party is entitled to recover attorney’s fees, as costs, when authorized by contract, statute, or by law. (Id., §§ 1033.5(a)(10)(A)-(C).) “Attorney’s fees allowable as costs pursuant to subparagraph (A) ... of paragraph (10) of subdivision (a) [by contract] shall be fixed either upon a noticed motion or upon entry of a default judgment, unless otherwise provided by stipulation of the parties.” (Id. at § 1033.5(c)(5)(A).)

“A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court ... must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.” (Cal. R. Ct., Rule 3.1702(b)(1).)¿

B.

Discussion

Movant Willis moves the Court for an order awarding \$9,500 in attorney’s fees and \$478.68 in filing fees pursuant to Code of Civil Procedure §§ 473(d), 1032 and 1033.5 and/or pursuant to the Court’s inherent equitable authority.

Plaintiff opposes, arguing that Section[2]

473(d) does not permit an award of attorney fees and Movant Willis is not a “party” to this matter such that he can avail himself of Sections 1032 and 1033.5.

1.

Code of Civil Procedure § 473(d)

Movant Willis contends the language in the Code of Civil Procedure allowing a court to set aside a void judgment and impose “terms as may be just” authorizes an award attorney fees here.

First, the Court notes that the language allowing the Court to set aside a void judgment and impose “terms as may be just” does not appear in the Code section cited by Movant Willis. The language cited by Movant Willis appears in Section 473(b) and Movant Willis does not move under that Code section.

Second, the Court notes that the Code section pursuant to which Movant Willis seeks an award of attorney fees, Section 473(d), contains no language authorizing an award of attorney fees.

Finally, the Court finds that it has no authority to award attorney fees pursuant to Section 473(b) or (d). As recently decided by the Fourth District Court of Appeal in the case of Amezcua v. Superior Court (2026) 120 Cal.App.5th 116 (“Amezcua”) a trial court has no authority to award attorney fees pursuant to Section 473(a). (See Amezcua, supra, 120

Cal.App.5th at pp. 130-131 (Writ of Mandate issued after reviewing relevant caselaw and concluding the trial court had no authority to issue a fee shifting order pursuant to Code of Civil Procedure § 473(a).) In accordance with Amezcuca, the Court finds it has no authority to issue an award of attorney fees pursuant to Section 473(a) and, as is noted above, Section 473(d) contains no language authorizing an award of attorney fees.

In accordance with the above, Movant Willis' request for an award of attorney fees pursuant to Code of Civil Procedure § 473 is DENIED.[3]

2.

Codes of Civil Procedure §§ 1032 and 1033.5

Movant Willis seeks an award of costs pursuant to Code of Civil Procedure §§ 1032 and 1033.5 as the prevailing party. In opposition, Plaintiff contends, given that Movant Willis was named in error, he is not a party to these proceedings and therefore cannot invoke Sections 1032 and 1033.5.

i.

Movant Willis was a Party to this Action

The Court does not find Plaintiff's argument as to Movant Willis' ability to invoke Sections 1032 and 1033.5 persuasive. Section 1032 defines "Defendant" to include "a person against whom a complaint is filed." (Code Civ. Proc. § 1032(a)(2).) Plaintiff filed a complaint against Movant Willis, served him, obtained a default judgment against him, and placed a lien on his property. (See Minute Order, 1/6/26, p. 3; see also D'Anna Decl. ¶¶ 8, 12, Exh. 1.) Movant Willis then appeared before the Court and sought to have the judgment set aside on the ground of mistaken identity. (See Id.) That Movant Willis was the wrong Defendant does not make him any less of a party; he was served with process, he appeared in these proceedings and, until the judgment against him was set aside, he was the Defendant until Plaintiff acknowledged otherwise and until the Court set aside the judgment entered against him. The Court finds that Movant Willis may invoke Sections 1032 and 1033.5.

ii.

Movant Willis is the Prevailing Party

The Court further finds that Movant Willis is the prevailing party entitled to seek relief pursuant to Sections 1032 and 1033.5. Section 1032(a)(4) provides that a "prevailing party" includes "a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc. §1032(a)(4).) Here, the Court set aside and vacated the default judgment entered against Floyd Willis (the Defendant at the time). Movant Willis obtained a simple, unqualified victory, thus making Willis the prevailing party. (See *Hsu v. Abbata* (1995) 9 Cal.4th 863 (When a defendant obtains a simple, unqualified victory by defeating the only contract claim in the action Civ. Code, § 1717 entitles the successful defendant to recover reasonable attorney fees incurred in defense of that claim if the contract contained a provision for attorney fees.))[4]

iii.

Movant Willis May Seek Attorney's Fees as Costs

As to costs, Section 1033.5 allows, among other things, the recovery of attorney's fees when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10).) The contract sued upon here contains the following language:

Cost Reimbursement: Application of Proceeds. You agree to promptly reimburse us, with interest, for all costs and expenses incurred in exercising our remedies related to this Note, including reasonable attorneys' fees and the costs of collection after default, to the extent permitted by applicable law. Our rights are cumulative and we may exercise these rights at any time if you default.

(See Complaint ¶ 26, Exh. B, p. 2, ¶ 5c (emphasis in original).) Civil Code § 1717(a) makes the above-cited contractual provision reciprocal. (See Civ. Code § 1717(a) ("In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in

the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs).) [5]

As to the fact that Movant Willis is not the correct Defendant and accordingly not a party to the contract at issue, it has been consistently held that a prevailing party may recover attorney's fees as costs even where the prevailing party is not a signatory to the contract at issue. (See Sukut-Coulson, Inc. v. Allied Canon Co. (1978) 85 Cal.App.3d 648 (Civil Code § 1717 is to be interpreted to provide a reciprocal remedy for a nonsignatory defendant, sued on a contract as if he were a party to it, when a plaintiff would clearly be entitled to attorney fees should he prevail in enforcing the contractual obligation against defendant); Jones v. Drain (1983) 149 Cal.App.3d 484 (Although trial court found no contract existed between Plaintiff and Defendant, Defendant was entitled to recover attorney fees pursuant to Civil Code § 1717 since plaintiff would have been entitled to attorney fees had he prevailed in his cause of action); Manier v. Anaheim Bus. Center Co. (1984) 161 Cal.App.3d 503 (Prevailing party entitled to recover attorney fees whether the contract is upheld or whether the court determines that the contract was unenforceable or that the prevailing litigant was not a party or signatory to it); Hsu v. Abbata (1995) 9 Cal.4th 863 (Although Court found no contract had been formed, Defendant entitled to attorney's fees pursuant to Civ. Code § 1717); Topanga and Victory Partners v. Toghia (2002) 103 Cal.App.4th 775 (Non-party to contract could recover attorney fees only for prevailing on contract based causes of action).)

i.

Plaintiff's Dismissal Does Not Preclude an Award of Attorney's Fees

Citing Santisas v. Goodin

(1998) 17 Cal.4th 599 ("Santisas"), Plaintiff argues that a dismissal based on procedural or technical grounds is generally not automatically a prevailing party for the purposes of awarding attorney fees. Plaintiff's reliance on Santisas is misplaced.

The Santisas Court was presented with a situation where the Plaintiff voluntarily dismissed their entire action with prejudice and the Defendants thereafter filed a motion to recover attorney fees. (Santisas, supra, 17 Cal.4th at p. 603-604.) In holding that Defendants were not entitled to recover pursuant to Civil Code § 1717, the Santisas

Court reasoned allowing Defendants to recover would defeat the purposes of Civil Code § 1717 because in the case of a voluntary dismissal such a construction “would result in exactly the sort of one-sided enforcement of contractual attorney fee provisions that section 1717 was intended to preclude.” (Id., at p. 617.)

The situation presented here is wildly different from the situation presented in *Santisas*. Yes, Plaintiff voluntarily dismissed the action on March 12, 2026, but that was only after Movant Willis filed the instant motion on February 6, 2026.

Plaintiff cites no statute or caselaw allowing Plaintiff to defeat a properly filed motion by dismissing the case in its entirety. More importantly, however, is the fact that there are two Defendants here – Movant Willis and Defendant Willis. Movant Willis obtained a final determination in his favor on January 6, 2026. (See Minute Order, 1/6/26.) The case remained open so that Defendant Willis could be properly served. (See Id., p. 5, fn. 5 (“The matter is returned to the Court’s active calendar so that the proper ‘Floyd Willis’ can be served, appear and defend”)(emphasis in original).) Plaintiff’s March 12 dismissal was as to Defendant Willis (the only party remaining); Movant Willis had already obtained relief. Accordingly, while Plaintiff’s argument premised on *Santisas* might have effect if made as to Defendant Willis, the *Santisas* Court’s ruling does not apply as to Movant Willis.

ii.

Movant Willis’ Fees and Costs are Reasonable

In the declaration accompanying Movant Willis’ moving papers, counsel Jerlisa M. Farmer (“Farmer”) attests to having spent 17.27 hours at an hourly rate of \$550 for investigating, preparing and litigating Movant Willis’ Motion to Set Aside and attaches an itemized billing statement. (Farmer Decl., ¶ 7, Exh. A.) Farmer further attests that Movant Willis incurred \$478.68 in filing fees necessary to bring the motion to vacate the judgment. (Id., ¶ 8.)

Plaintiff opposes, arguing that Farmer’s hours spent on consultation, drafting and research are “completely unreasonable and grossly shock the conscious [sic] of any reasonable person.” (Opp., p. 9:14-15.) Plaintiff contends that Farmer could have done more than place a single phone call in attempting to reach out to Plaintiff’s counsel. And Plaintiff contends that there was no harm to Movant Willis because the social security number on the Abstract of Judgment did not match Willis’ social security number and thus no lien was created.

The Court does not find Plaintiff's arguments persuasive. While it is true that perhaps Farmer might have made more of an effort to contact Plaintiff's counsel, moving to vacate an improperly issued judgment is by no means unreasonable nor is doing so something that would shock the conscience. And Plaintiff's argument as to whether it actually had a lien on Movant Willis' property misses the mark. First, the relevant statutes do not require Movant Willis to justify his request for attorney's fees by articulating a harm. Second, Plaintiff may not have had a lien on Movant Willis' property due to the social security number discrepancy but that does not mean that Movant Willis did not have to expend funds to hire an attorney to rectify the situation (which situation included not only removing the lien but also vacating the default judgment).

The Court finds that Farmer's hourly rate is reasonable for an attorney of Farmer's attested skill and experience in the Greater Los Angeles Area. (See Farmer Decl., ¶¶ 2-5.) And the Court finds Farmer's attested hours spent resolving this matter are reasonable.

Accordingly, the Court GRANTS Movant Willis' Motion in the amount of \$9,977.18, consisting of \$9,498.50 in attorney's fees^[6] and \$478.68 in costs.

II.

CONCLUSION

Movant Floyd Douglas Willis' Motion for Attorney's Fees and Costs is GRANTED in the total reduced amount of \$9,977.18.

The awarded fees are to be paid to Movant's Counsel no later than July 31, 2026.

[1] Movant Floyd Douglas Willis and Defendant Floyd Willis are not the same person.

Movant Willis' Motion to Set Aside/Vacate was granted on the ground that Plaintiff did not dispute that Movant Willis is not the intended Defendant.

(See Minute Order, 1/6/26, p. 3.) Where

necessary for differentiation, the Court refers to the moving party as "Movant Willis" or "Floyd Douglas Willis."

[2] Unless otherwise specified, all

Section references are to the Code of Civil Procedure.

[3] Given the finding above, the Court does not address Plaintiff's arguments made in opposition to Movant Willis' request made pursuant to Code of Civil Procedure § 473. The Court notes, however, that the case cited by Plaintiff in opposition – *Ciccolella v. Ovchinnikov* 2026 Cal. Super. LEXIS 18135 – is a Superior Court case and is not binding precedent.

[4] Plaintiff's argument that Movant Willis is not the prevailing party due to its dismissal will be discussed in more detail below, however to the extent that Plaintiff argues that an award of attorney fees is improper because the matter has not finally resolved the Court does not find that argument persuasive.

As to Movant Willis, the matter has resolved via the Court's January 6, 2026 Order, which Order Plaintiff did not dispute. (See Minute Order, 1/6/26, p. 3 ("Plaintiff does not dispute that Movant is not the intended Defendant and does not oppose or object to vacating the service, proof of service, default and the default judgment").)

[5] The Court understands that Plaintiff waived its right to attorney fees. (See Complaint ¶ 26.) Plaintiff's waiver does not affect Movant Willis' right to recover.

[6] Movant Willis seeks \$9,500 in his motion. Farmer attests that "[t]he total time spent is 17.27 hours, resulting in fees of \$9,498.50, rounded up to \$9,500." (Farmer Decl., ¶ 7.) Exhibit A to Farmer's declaration states 17.3 hours for total fees incurred of \$9,515.00. (See Farmer Decl., Exh. A, p. 2.) The Court's calculation places the total number of hours at 17.9 for a total of \$9,845.00. Given the discrepancy, the Court goes with the lower amount as attested by Farmer.